

any such school, that subsection shall have effect as if the close of the educational year fixed by the order were substituted for the close of the school year.

subsection
is to be
reckoned.

3. The provisions of any byelaws made by any local authority under section one hundred and fifty-seven of the Public Health Act, 1875, as amended by any other Act, with respect to new buildings (including provisions as to the giving of notices and deposit of plans and sections), and any provisions in any local Act dealing with the construction of new buildings, and any byelaws made with respect to new buildings under any local Act, shall not apply in the case of any new buildings being school premises to be erected, or erected, according to plans which are under any regulations relating to the payment of grants required to be, and have been, approved by the Board of Education.

Exemption
of school
buildings
from building
byelaws where
plans approved
by Board of
Education.
38 & 39 Vict.
c. 55.

4. The accounts of the receipts and expenditure of any governing body to whom in pursuance of a scheme made under the Welsh Intermediate Education Act, 1889, any payments are made out of any general fund administered by a local education authority as a governing body under that Act, as well as the accounts of the receipts and expenditure of any local education authority in its capacity as such a governing body, shall be audited in like manner and subject to the same provisions as the accounts of a county council, and the enactments relating to the audit of those accounts and to all matters incidental thereto or consequential thereon (including the penal provisions of those enactments), shall apply accordingly, and any provisions in any scheme which relate to the audit of the accounts of any such governing body shall cease to have effect.

Audit of ac-
counts of
governing
bodies under
52 & 53 Vict.
c. 40.

5. This Act may be cited as the Education (Administrative Provisions) Act, 1911, and shall be construed as one with the Education Acts, 1870 to 1909, and those Acts and this Act may be cited together as the Education Acts, 1870 to 1911.

Short title.

CHAPTER 33.

An Act to amend the Law relating to the Harbours of the Isle of Man.

[16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Commissioners shall have power, subject to the approval of the Tynwald Court, to provide, maintain, and work ferries from place to place within the limits of any harbour in the Isle of Man, for the carriage of passengers or goods, and to

Power to Com-
missioners to
provide work
and maintain
ferries.

35 & 36 Vict.
c. 23.

charge tolls in respect thereof, and to do all things necessary for those purposes, and section nine of the Isle of Man Harbours Act, 1872 (hereinafter referred to as the principal Act), shall have effect as if those powers were included amongst the powers given by that section.

(2) The purposes for which byelaws may be made under section thirteen of the principal Act shall include the regulation of ferries provided by the Commissioners, and the regulation of the conduct of persons carried thereon.

(3) Nothing in this section contained shall authorise any tolls to be demanded or received by the Commissioners for the conveyance of any person when on duty in the service of the Crown or any Government department, or of any goods for the service or being the property of the Crown or any Government department, or of any postal packets within the meaning of the

8 Edw. 7, c. 48. Post Office Act, 1908.

Application of
dues.
37 & 38 Vict.
c. 8.

2. Section six of the Isle of Man Harbours Act, 1874, shall have effect as if the purposes to which sums received on account of dues charged under the Isle of Man Harbours Acts, 1872 to 1911, may be applied, included the improvement, maintenance, or repair of the harbours to which those Acts apply, or any of them, as well as, but subject to, the payment of principal and interest due in respect of money borrowed for those purposes.

Power to
charge dues
on goods
shipped as
well as on
goods landed.
47 & 48 Vict.
c. 7.

3. The power to appoint dues to be paid by vessels on goods under section five of the Isle of Man Harbours Act, 1884, shall include a power to appoint dues, not exceeding sixpence per ton, to be paid by a vessel on goods shipped by that vessel in any harbour, or on any quay or pier under the control of the Commissioners, subject, if it is thought fit, to a condition that the dues on goods so shipped are to be paid only so far as they exceed the dues paid by the vessel on previously entering the harbour.

Maximum
dues.

4.—(1) The maximum dues chargeable under section three of the Isle of Man Harbours Act, 1874, shall be those set out in the First Schedule to this Act, and the table of maximum dues there set out shall be substituted for that portion of the schedule to the Isle of Man Harbours Act, 1874, which sets out the maximum dues.

(2) This section shall not come into operation until the expiration of six months from the date of the passing of this Act, or, if the Court of Tynwald before the expiration of those six months appoints revised dues under section three of the Isle of Man Harbours Act, 1874, in accordance with the First Schedule to this Act, until the date on which the resolution imposing the revised dues comes into force.

Application of
general Acts to
Port Erin.
26 & 27 Vict.
c. 86.

5.—(1) The Isle of Man Harbours Act, 1863, which makes separate provisions for the harbour of Port Erin, shall cease to have effect, and Port Erin shall be a harbour to which the Isle of Man Harbours Acts, 1872 to 1911, extend.

(2) All moneys in the hands of the Commissioners which have been raised under the provisions of the Isle of Man Harbours Act, 1863, shall be added to the funds of the Commissioners for the maintenance of the harbours generally.

6.—(1) The power under section two of the Isle of Man Harbours Act, 1883, to impose a duty on passengers carried for hire is hereby extended so as to include a power to impose, as respects vessels holding a Board of Trade certificate for the conveyance of passengers, a duty on passengers whether carried for hire or not. Amendment of provisions enabling duty to be charged on passengers.

(2) One shilling shall be substituted for threepence as the maximum duty on a passenger under proviso (1) to section two of the Isle of Man Harbours Act, 1883, as respects passengers embarked or disembarked at a harbour on Sunday between the hours of eight o'clock in the forenoon and five o'clock in the afternoon. 46 & 47 Vict. c. 9.

7. The Commissioners may, if they think fit, accept any smaller amount which they consider reasonable in full discharge of a debt of seven hundred pounds or thereabouts due from the municipal corporation of the borough of Douglas in respect of harbour dues for a hopper barge belonging to the Corporation. Power to Commissioners to remit dues on the hopper barge of the Douglas Corporation.

8.—(1) The Acts specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule. Repeal, construction, and short title.

(2) This Act shall be construed as one with the principal Act, the Isle of Man Harbours Act, 1874, the Isle of Man Harbours Act, 1883, and the Isle of Man Harbours Act, 1884; and this Act and those Acts may be cited as the Isle of Man Harbours Acts, 1872 to 1911, and this Act may be cited as the Isle of Man Harbours Act, 1911.

SCHEDULES.

FIRST SCHEDULE.

Section 4.

MAXIMUM DUES.

	£	s.	d.
For every fishing vessel, for each year commencing on the first day of April - - - - -	2	0	0
or, at the option of the vessel, each time entering a harbour to which this Act applies - - - - - per ton	0	0	6

	£	s.	d.
For any lighter or barge owned by any local authority leaving a harbour to which this Act applies and re-entering such harbour without having entered any other harbour - - - - - per ton	0	0	0½
For any vessel other than a fishing vessel or a lighter or barge owned and employed as aforesaid entering a harbour to which this Act applies - - - - - per ton	0	0	6
In addition to the entrance dues, for every vessel (other than a fishing vessel during the period for which an annual due has been paid) laid up or lying in a harbour to which this Act applies longer than three months - - - - - per ton	0	0	6
and upon the expiration of each subsequent period of six months - - - - - per ton	0	0	6
and for every fishing vessel which has paid such annual sum, after the expiration of the year in respect of which the said due has been paid - - - - - per ton	0	0	6
and upon the expiration of each subsequent period of six months - - - - - per ton	0	0	6

For the purposes of this schedule "local authority" means, within the borough of Douglas, the municipal corporation of such borough, and elsewhere within the Isle of Man, the commissioners of the local government district.

Section 8.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
26 & 27 Vict. c. 86.	The Isle of Man Harbours Act, 1863.	The whole Act.
37 Vict. c. 8 -	The Isle of Man Harbours Act, 1874.	In section two the words "other than Port Erin." Section eight. The table of maximum dues in the schedule commencing with the word "MAXIMUM" and ending with "months per ton 0 0 6."
46 Vict. c. 9 -	The Isle of Man Harbours Act, 1883.	In section eight, the words "other than Port Erin"